

		["Admissions or concessions made during the course of discovery govern and control over contrary declarations lodged at a hearing on a motion for summary judgment"].) But even if the new facts in Plaintiff's declaration do not contradict prior discovery responses, summary judgment based on an inspection of photographs of the alleged defect is proper only where the reviewing court concludes that reasonable minds cannot differ regarding the depiction of the alleged defect and the surrounding environs. (<i>Kasparian v. AvalonBay Communities, Inc.</i>, <i>supra</i>, 156 Cal.App.4th at 15.) The photographs produced by Plaintiff show there are no broken pieces or jagged edges on or near the utility box, only that there is a height differential of 1 ¼ inches between the two lids covering the utility box. This is no different than a height differential of two slabs of concrete on a sidewalk. The fact there is a metal-on-concrete transition appears to be a distinction without a difference. Without no aggravating factors as can be seen in the photos, the alleged defect is trivial as a matter of law. (See e.g., <i>Beck v. City of Palo Alto</i> (1957) 150 Cal.App.2d 39 [holding that defect in sidewalk caused by one slab of concrete being pushed higher than contiguous slab with a difference in elevation up to one- and seven-eighths-inch, without any aggravating factors, is trivial as a matter of law].) Plaintiff failed to meet her burden showing a triable issue of fact on the trivial defect defense. The motion for summary judgment is therefore GRANTED. Counsel for Defendant shall give notice of this ruling.
3	Dotts v. Hyundai Motor America	O/C
4	McCormick v. Panacea Aesthetics & Wellness, Inc.	The unopposed motion to be relieved as counsel of record for defendant Panacea Aesthetics & Wellness, Inc. filed by Kerri N. Kramer, Esq. of Kring & Associates, APC is GRANTED. Moving counsel has complied with the procedural requirements of C.R.C. 3.1362. The court finds good cause to grant the relief requested on the merits. The motion is thus GRANTED. The order granting relief is effective upon filing of a proof of service of the signed order on the client. A corporation must be represented in court by an attorney. (<i>Gutierrez v. G & M Oil Co., Inc.</i> (2010) 184 Cal.App.4th 551, 564.) As such, in order to proceed with this matter, defendant Panacea Aesthetics & Wellness, Inc. is ordered to obtain new counsel within a reasonable time. (<i>CLD Constr., Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1150.) An Order to Show Cause re: Retention of Counsel is scheduled for September 11, 2026, at 9:30 a.m.. Moving counsel shall give notice of this ruling.

5	Rezai vs. Monfared	Plaintiffs Ramin Monfared and Negin Almassi's ("Plaintiffs") Motion for Entry of Judgment against defendants Zara Rezai a/k/a Zahra Rezai, Andy Andalibian, Greg M Tonkinson, individually and as alleged successor or Trustee of the Coast Highway Ramfared trust, dated November 28, 2022, Alliance Construction Co., and New Dawn Jenkins LLC ("Defendants" together) is GRANTED. The parties entered into a valid and binding settlement agreement which required Defendants to sell real property and put \$450,000 into escrow for payments to Plaintiffs. (Jafari Decl. ¶¶ 2-5, Ex. 1.) Defendants violated the terms of the agreement and failed to take the actions required. Defendants were notified of the default, but refused or failed to cure it. Defendants were also served notice of the motion and hearing. Pursuant to Civ. Proc. Code § 664.6 and the terms of the settlement agreement between the parties, the court will grant the motion and enter judgment in the total amount of \$450,000.00, plus 10% annual interest from the date entry of judgment is made. While the agreement also permits recovery of attorney fees and costs, Plaintiffs will need to seek those under a separate motion as there was no evidence of attorney fees and costs in the present motion. Plaintiffs are also directed to file a proposed judgment for the court to review and sign. Plaintiffs to give notice.
6	Gibas vs. Barua	Before the court is an unopposed motion filed by attorneys Rye Mhtar of Buffington Law Firm, P.C. ("Attorneys"), requesting to be relieved as counsel of record for plaintiffs Donald Joseph Gibas and Billie Jo Gibas, Both in Their Individual Capacity and As Trustees of the Gibas Family Revocable Living Trust Dated July 5, ("Clients" together). The motion is GRANTED. Attorneys have complied with the requirements of California Rule of Court 3.1362, and filed and served forms MC-051, MC-052, and MC-053 on Clients and on the defendant. The court finds Attorneys have provided a valid and sufficient reason for requesting to be relieved as counsel for Clients. As such, the court GRANTS the motion. The order relieving counsel shall not be effective until Attorneys file with the court a proof of service showing the signed order granting the motion has been served on Clients. Until such time, Attorneys shall remain counsel of record. Case Management Conference is CONTINUED to October 9, 2026, at 9:30 a.m. Attorneys are ordered to give notice of this ruling.
7	Schutzman v. Stern	Before the Court is a special motion to strike (anti-SLAPP) brought by defendants Oren Stern and Amit Louzon as to the first cause of